

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.**

6. S-CV-0051611 SUPREMA MEATS v. SALINAS FOOD

Defendants Feng Xiang Zhao AKA Tom Jau, Yin Chee Ting, and Great Golden River's Motion for Summary Judgment

A motion for summary judgment must be filed and served at least 81 days before the time appointed for hearing. (Code Civ. Proc., § 437c, subd. (a)(2).) This timeline is increased by 2 court days where, as here, the motion was served by e-mail. (*Ibid.*; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

The time appointed for hearing is August 27, 2026. Subtracting 81 days plus 2 court days creates a deadline to file and serve the motion for summary judgment by e-mail on or before June 4, 2026. However, defendants served their motion for summary judgment by e-mail on June 5, 2026. This is untimely.

Accordingly, defendants' motion for summary judgment is denied.

7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN RYAN

Defendants' Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Preliminary Matters

Plaintiffs' objections are sustained in their entirety.

Defendants' reply brief, along with objections to plaintiffs' evidence and a responsive separate statement to plaintiffs' additional material facts, are untimely filed and served without explanation. (Code Civ. Proc., § 437c, subd. (b)(4).) The court declines to consider these documents.

Ruling on Motion

Defendants move for summary adjudication as to the second cause of action for intentional infliction of emotional distress and prayer for punitive damages as to plaintiffs' first amended complaint. A motion for summary adjudication requires a showing that there is no merit to one or more of the causes of action. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).)

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In reviewing a motion for summary adjudication, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendants, as the moving parties, bear the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Second Cause of Action—Intentional Infliction of Emotional Distress

Plaintiffs must establish the following elements for an intentional infliction of emotional distress cause of action: “(1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of the emotional distress.” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1376.) Courts recognize there is a high bar for what constitutes severe distress. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Conduct is outrageous “when it is so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Id.* at 1050–51.) As such, liability “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Id.* at 1051.)

Here, defendants meet their initial burden to show that plaintiffs cannot establish the third element for severe emotional suffering. (UMF Nos. 6–8, 11–19.) The burden therefore shifts to plaintiffs to raise a triable issue of material fact.

Plaintiffs do not thereafter meet their burden to raise a triable issue of material fact as to the third element. Accordingly, defendants’ motion for summary adjudication is granted as to the second cause of action for intentional infliction of emotional distress.

Punitive Damages Prayer

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause

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injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Here, defendants meet their initial burden to show that plaintiffs cannot establish entitlement to punitive damages because there is insufficient evidence that defendants acted with oppression, fraud or malice. (UMF Nos. 21–26.) The burden therefore shifts to plaintiffs to raise a triable issue of material fact.

Plaintiffs do not thereafter meet their burden to raise a triable issue of material fact as to their entitlement to punitive damages. Accordingly, defendants’ motion for summary adjudication is granted as to the prayer for punitive damages.

In sum, defendants’ motion for summary adjudication is granted as to the second cause of action for intentional infliction of emotional distress and prayer for punitive damages.

8. S-CV-0052930 HAMMACK, ELIZABETH v. ESTATE OF JERRY CEPEL

Petition for Approval of Minor’s Compromise Claim (Sameera Pannu)

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

Petition for Approval of Minor’s Compromise Claim (Cyrus Pannu)

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)